

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jerome Wells	Team: Team # 2	CCRB Case #: 200410461	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 10/14/2004 7:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 4/14/2006	Precinct: 75
Date/Time CV Reported Thu, 10/21/2004 1:02 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 10/21/2004 1:02 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Vincent Fontana	15144	931673	075 PCT
2. Officers			
3. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Lewis Ortiz	13761	899683	075 PCT
2. POM Anthony Vidot	31257	931380	075 PCT
3. POM Jelson Goyco	20089	926897	075 PCT
4. POM Thomas Wright	05090	929384	075 PCT
5. POM Charles Mcdonald	10025	922741	075 PCT
6. POM Richard Arroyo	07788	921933	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: Officers entered the § 87(2)(b) § 87(2)(b) Brooklyn, NY.	A . Unsubstantiated
B . POM Vincent Fontana	Abuse: PO Vincent Fontana entered the § 87(2)(b) § 87(2)(b) Brooklyn NY.	B . Unsubstantiated
C . Officers	Abuse: Officers drew their guns.	C . Officer(s) Unidentified
D . POM Vincent Fontana	Abuse: PO Vincent Fontana drew his gun.	D . Unsubstantiated
E . An officer	Force: An officer pointed his gun at § 87(2)(b)	E . Officer(s) Unidentified

Synopsis

On October 21, 2004, the CCRB received a complaint from § 87(2)(b) on behalf of her daughter, § 87(2)(b). According to § 87(2)(b) she, her sister, § 87(2)(b) and cousin, § 87(2)(b) were involved in a physical fight with two other girls outside of their home located at § 87(2)(b). § 87(2)(b) remained outside of her building after the fight with a group of people, including her friend § 87(2)(b) (last name unknown), and noticed police cars coming down her block. The group dispersed and § 87(2)(b) decided to go to her apartment, leaving her apartment door open for § 87(2)(b) who did not follow her to the apartment. Approximately five minutes later, § 87(2)(b) heard a noise at her door and observed approximately 6 male white officers entering her apartment (Allegations A and B) with their guns drawn (Allegations C and D). § 87(2)(b) stated that an unidentified officer pointed his gun at her when she was reaching for her shoes to wear outside of the apartment (Allegation E). § 87(2)(b) stated that she was placed in handcuffs in her apartment and transported to the 75th Precinct. § 87(2)(b) was charged § 87(2)(b).

§ 87(2)(g)

There was no record of which officers responded to this incident and PO Fontana did not recall who he was working with or which officers responded to the scene. There was no SPRINT for this incident and the roll call from the 75th Precinct misidentified who PO Fontana was working with, as did PO Fontana. § 87(2)(g) it is recommended that Allegation A, B and D be closed as unsubstantiated, § 87(2)(g) it is recommended that Allegations C and E be closed as officer(s) unidentified.

§ 87(2)(g)

Summary of Complaint

§ 87(2)(b) was interviewed at the CCRB on November 9, 2004. At approximately 7 PM on October 14, 2004, § 87(2)(b) was standing outside of her building located at § 87(2)(b) with her sister, § 87(2)(b) and her aunt § 87(2)(b). § 87(2)(b) stated that § 87(2)(b) step-daughter § 87(2)(b) (listed as victim on the complaint report) and her friend, § 87(2)(b) (last name unknown) were also outside. An argument began between § 87(2)(b) and § 87(2)(b) and they began to fight, leading § 87(2)(b) and § 87(2)(b) to fight also. The argument and fight lasted between 30 minutes to an hour and was broken up by unknown people on the street. When the fight was over § 87(2)(b) and § 87(2)(b) went inside of the building and § 87(2)(b) remained outside of the building with her friend § 87(2)(b) and a few other people. While § 87(2)(b) was outside of the building, she noticed police cars coming to her block and decided she should go inside of her apartment, which is a § 87(2)(b) apartment. § 87(2)(b) assumed the police would tell her and her friend to move from in front of her building. § 87(2)(b) told the people she was with that they could not stay in front of the building and they went around the corner. § 87(2)(b) stated that she left the door open so § 87(2)(b) could come into the apartment.

§ 87(2)(b) stated that she was alone inside of her apartment for five minutes when she heard a noise at the door that police officers entered her apartment. § 87(2)(b) stated that she saw “a lot of white men with guns out.” § 87(2)(b) saw approximately six white males in uniform. One of the officers (who she believed to be PO Vincent Fontana) was approximately 6’3, medium build, “bald and ugly.” The rest of the officers were shorter than PO Fontana. § 87(2)(b) stated that all of the officers had their guns drawn and one of them pointed his gun in her face, but she did not know the officer’s name and could not describe him. § 87(2)(b) stated that the officers remained inside of her apartment for approximately 5 to 10 minutes. During this time, the officers told her to put her shoes on and gave her brother’s shoes to her. § 87(2)(b) told the officers that the shoes were not her shoes and she began to reach for her shoes.

An unidentified officer pointed his gun in her face and told her not to move. § 87(2)(b) stated that PO Fontana then placed her in handcuffs.

§ 87(2)(b) was taken out of her apartment, placed in a patrol car and transported to the 75th Precinct. When she arrived at the precinct, § 87(2)(b) was already inside. This led her to believe that § 87(2)(b) went to the precinct to make a complaint against her. § 87(2)(b) asked the officers why she was arrested and § 87(2)(b) was not, if they had a fight. She also told PO Fontana that § 87(2)(b) was not allowed to hit her because she was underage. PO Fontana told her that this was not the case. § 87(2)(b) was then frisked by an unidentified female officer and placed in a cell where she remained until approximately 11 PM when she was taken to Central Booking. § 87(2)(b) stated that she received a busted nose and scratches on her arm from the fight she had with § 87(2)(b) but never asked to go to the hospital.

§ 87(2)(b) mother, § 87(2)(b) who was present during her interview, stated that at the time of the incident she was in Virginia when she received a phone call from a friend who informed her that § 87(2)(b) Nichola was arrested. Her friend provided her with the number to the 75th Precinct and she spoke to PO Fontana. PO Fontana informed her that § 87(2)(b) was arrested § 87(2)(b)

Results of Investigation

Civilian Witness Statements

§ 87(2)(b)

§ 87(2)(b) was interviewed at the CCRB on November 9, 2004 by Investigator Abigail Braden. On October 14, 2004 at approximately 7 PM, § 87(2)(b) was involved in a fight in front of § 87(2)(b) with a number of females, including her sister § 87(2)(b). § 87(2)(b) was no longer on the scene when the officers arrived and arrested § 87(2)(b). She was informed by her sister § 87(2)(b) that six officers entered their apartment, pointed guns at her and arrested her. § 87(2)(b) also informed her that she was injured during the fight.

§ 87(2)(b)

§ 87(2)(b) was interviewed at the CCRB on November 9, 2004 by Investigator Joy Stueven. At approximately 7PM on October 14, 2004, § 87(2)(b) who was pregnant at the time, had an argument in her apartment, located at § 87(2)(b) in Brooklyn with her boyfriend's daughter, § 87(2)(b). The argument continued downstairs and it led to a physical altercation between § 87(2)(b) and her friend § 87(2)(b) and § 87(2)(b) nieces, § 87(2)(b) and § 87(2)(b). § 87(2)(b) attempted to break the fight up and § 87(2)(b) struck her. § 87(2)(b) stated that she left the scene and went to § 87(2)(b) when the fight was over because she was not feeling well. While in the hospital, she received a phone call from a friend of hers, stating that police officers had arrested § 87(2)(b) and were looking for § 87(2)(b) and § 87(2)(b). § 87(2)(b) left the hospital and returned home at this point. When she arrived, she saw § 87(2)(b) in handcuffs walking out of her § 87(2)(b) apartment with approximately 4-5 police officers. § 87(2)(b) stated that § 87(2)(b) asked an officer who § 87(2)(b) believed to be her arresting officer if she could put shoes on, and he allowed her to wear flip-flops. § 87(2)(b) also stated that this officer had his gun drawn. The officers then transported § 87(2)(b) to the 75th Precinct. § 87(2)(b) drove to the precinct after § 87(2)(b) was taken. She stated that § 87(2)(b) and § 87(2)(b) were already in the precinct when she arrived. § 87(2)(b) attempted to give a statement at the precinct and an officer told her that the arresting officer would take her complaint. § 87(2)(b) refused because she did not like his attitude. She was then told to go home and call 911 to have officers respond. § 87(2)(b) did this, and no one responded.

Police Officer Statements

PO Vincent Fontana

PO Vincent Fontana was interviewed at the CCRB on March 9, 2005. On October 14, 2004, PO Vincent Fontana worked from 5:30PM-2:05AM, assigned to the Tracer Unit and claimed to be working with PO Jelson Goyco. PO Fontana was dressed in uniform and assigned to a marked patrol car.

At approximately 7 PM on October 14 2004, PO Fontana stated that § 87(2)(b) (identified by complaint report) came into the 75th Precinct stating that she was assaulted at § 87(2)(b). PO Fontana stated that § 87(2)(b) claimed to be injured and believed to have observed injuries to her face. PO Fontana stated that he placed § 87(2)(b) in the back of a patrol car and responded to § 87(2)(b) to do a show up there. PO Fontana stated that approximately 4-6 officers responded to the scene with him, but he could not specifically state who else was there. He believed the other officers belonged to Tracer Units. § 87(2)(b) told PO Fontana that the person who assaulted her, § 87(2)(b) lived in the building, § 87(2)(b). PO Fontana stated that when they arrived at the location, the § 87(2)(b) door was wide open and the officers entered the door, announced themselves as police officers and asked § 87(2)(b) to exit the door. PO Fontana stated that § 87(2)(b) was alone in the apartment. PO Fontana stated that he was not the first officer to enter the apartment and did not see any officers draw their guns. He did state that he did not draw his gun. The officers were inside of the apartment for approximately 30 seconds. The officers brought § 87(2)(b) outside without incident, and § 87(2)(b) identified § 87(2)(b) as the person who assaulted her. § 87(2)(b) was then placed in handcuffs, but PO Fontana did not recall which officer handcuffed her. PO Fontana stated that § 87(2)(b) never claimed to be injured or made any other statements. PO Fontana stated that he did not transport § 87(2)(b) to the precinct and did not know who did. He did see her at the precinct and took her photograph and lodged her after she was searched by an unidentified female officer.

PO Thomas Wright, PO Anthony Vidot, PO Jelson Goyco

On October 14, 2004, PO Thomas Wright, PO Anthony Vidot and PO Jelson Goyco worked from 5:30PM-2:05AM and were working together, assigned to the Tracer Unit for the 75th Precinct with. They were all dressed in uniform and assigned to a marked patrol van. They did not have any memo book entries for the time of the incident.

The officers had no recollection of this incident and stated that they did not respond to § 87(2)(b) during their tours. They also stated that they did not see anyone enter the 75th Precinct to complain about being assaulted. None of these officers were partnered with PO Fontana.

PO Richard Arroyo, PO Charles McDonald

On October 14, 2004, PO Richard Arroyo and PO Charles McDonald worked 4x12 tours, assigned to patrol sector KM within the confines of the 75th Precinct. They were both dressed in uniform and assigned to a marked patrol car.

PO Arroyo and PO McDonald did not have any recollection of this incident, nor did they recall responding to § 87(2)(b) on this date. Both of their memo books show that they were working on another job at the time of the incident.

PO Lewis Ortiz

On October 14, 2004, PO Lewis Ortiz worked from 5:30PM-2:05AM, assigned to prisoner transport for the 75th Precinct. PO Ortiz did not recall who he was working with on this date, but stated that he was in uniform and assigned to a marked paddy wagon.

PO Ortiz had no recollection of this incident. He stated that he was transporting prisoners from the 75th precinct to Central Booking located at 120 Schermerhorn Street in Brooklyn. PO Ortiz did not know of the specifics surrounding the incident and did not respond to § 87(2)(b) during his tour. He also stated that he was not in the precinct when a complaint was made about the assault of § 87(2)(b).

PO Goyco was interviewed because PO Fontana named him as his partner on the date of the incident. The Roll Call lists PO Wright and PO Vidot as PO Goyco's partners on the date of the incident. PO Arroyo and PO McDonald were interviewed because they were listed on the SPRINT as responding to the located when § 87(2)(b) called to make her complaint.

Police Documents

Roll Call and SPRINT

According to the Roll Call from the 75th Precinct, PO Fontana was working with PO Ortiz on this date. Upon being interviewed at the CCRB, it was disclosed that PO Ortiz was doing prisoner transport. PO Fontana stated that he was working with PO Goyco on this date, however the roll and PO Goyco's memo book confirm that PO Goyco was working with PO Vidot and PO Wright.

No SPRINT could be found for this incident. The SPRINT that was found was a call from § 87(2)(b) (phone number matches her cell phone number) to 911, calling to make a report about the assault approximately an hour after the initial incident.

Command Log and Arrest Report

§ 87(2)(b) arrest report and command log both disclosed that she was arrested § 87(2)(b) and that her arresting officer was PO Fontana. The command log disclosed that § 87(2)(b) was searched at the precinct by PO Justinah McFadden and that her mother, § 87(2)(b) was contacted in regards to her arrest.

Civilian CCRB Complaint History

This is the first complaint filed by § 87(2)(b) and the first complaint involving § 87(2)(b)

Civilian Criminal History

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Criminal Charges Related to This Incident

§ 87(2)(b) was arrested § 87(2)(b) as a result of this incident. § 87(2)(a) 160.50
§ 87(2)(b)

Subject Officer's CCRB History

PO Fontana has been a member of the NYPD for three years and does not have any substantiated allegations in his history.

Conclusions and Recommendations

Undisputed Facts

§ 87(2)(g) It is not in dispute that a group of girls, including § 87(2)(b) had a physical fight in front of § 87(2)(b) and that officers responded to this address and arrested § 87(2)(b) § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Officer Identification

§ 87(2)(b) identified PO Fontana by name and stated he was on the scene and being her arresting officer. During his CCRB interview, PO Fontana confirmed his role during the incident and named PO Goyco as his partner. During his CCRB interview, PO Goyco stated that he was assigned to Conditions for the 75th Precinct and was working with PO Wright and PO Vidot on the incident date. § 87(2)(g)

§ 87(2)(b) The roll call identified PO Ortiz as PO Fontana's partner, but during his CCRB interview, PO Ortiz denied this claim and stated that he was assigned to the precinct's transport van.

§ 87(2)(g)

Credibility Assessment

§ 87(2)(b) *PO Vincent Fontana*

§ 87(2)(g)

§ 87(2)(b) stated that six white male officers entered her apartment without knocking on the door, with their guns drawn and placed her in handcuffs inside of her apartment. § 87(2)(b) identified one of these officers as PO Fontana, who was her arresting officer, but could not identify any other officers who were on the scene. PO Fontana misidentified who he was working with during the incident and could not name any other officers who were on the scene. He did not name his partner either. He admitted to entering the § 87(2)(b) apartment in an attempt to locate § 87(2)(b) and have her come outside for the purposes of a show-up. He also stated that he entered because the door was left wide open. According to PO Fontana, § 87(2)(b) was not placed in handcuffs until she was taken outside of her apartment and positively identified by § 87(2)(b). Witness § 87(2)(b) stated that when she arrived on the scene, she observed § 87(2)(b) being taken out the § 87(2)(b) in handcuffs.

Allegation A: Officers entered § 87(2)(b) of § 87(2)(b) Brooklyn, NY.

Allegation B: PO Vincent Fontana entered § 87(2)(b) of § 87(2)(b) Brooklyn NY.

According to PO Fontana, after § 87(2)(b) made the complaint at the precinct against § 87(2)(b) she was placed in a patrol car at the precinct and transported to § 87(2)(b) where the officers went to find § 87(2)(b) for the purposes of a show-up. PO Fontana stated that when they arrived on the scene, he and the other officers he was with, went to the § 87(2)(b) apartment after being informed by § 87(2)(b) that § 87(2)(b) lived there. He stated that the door was left wide open and the officers entered, announced that they were the police and asked § 87(2)(b) to exit the apartment. According to PO Fontana, § 87(2)(b) was not handcuffed until she was outside of her building and positively identified by the victim. § 87(2)(b) stated that she left her door open for a friend, and the door was wide open when the officers arrived. § 87(2)(b) further stated that she was handcuffed inside of her apartment. Witness § 87(2)(b) also claimed to have seen § 87(2)(b) being led out of the apartment in handcuffs by the officers. § 87(2)(g)

According to Kamins, the Supreme Court held that, "a suspect cannot be arrested in his home unless the police have an arrest warrant, even if they have probable cause to make an arrest." The Supreme Court noted that "physical entry into the home is the chief evil against which the Fourth Amendment is directed. At the very core of the Fourth Amendment stands the right of a man to retreat into his home and there be free from unreasonable governmental intrusion. Absent exigent circumstances, that threshold may not reasonably be crossed without a warrant." On the contrary, NYS Criminal Procedure Law 140.15 (4) states

[REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]

Allegation E: An officer pointed his gun at § 87(2)(b)

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that Allegation D be unsubstantiated. § 87(2)(g) [REDACTED]

Reviewed by:

Date:

Reviewed by:

Date: